

THOMAS, J., dissenting

text of the Copyright Act that the OCGA annotations are copyrightable. As an initial matter, the Act does not define the word “author,” 17 U.S.C. § 101, or make any reference to the government edicts doctrine. Accordingly, the term “author” itself does not shed any light on whether the doctrine covers statutory annotations. Second, while the Act excludes from copyright protection “work[s] prepared by an officer or employee of the United States Government as part of that person’s official duties,” § 101; see also § 105, the Act contains no similar prohibition against works of state governments or works prepared at their behest. “Congress’ use of explicit language in one provision cautions against inferring the same limitation” elsewhere in the statute. *State Farm Fire & Casualty Co. v. United States ex rel. Rigsby*, 580 U.S. 26, 34 (2016) (internal quotation marks omitted); *Pacific Operators Offshore, LLP v. Valladolid*, 565 U.S. 207, 216 (2012). Third, the Act specifically notes that annotations are copyrightable derivative works. § 101. Here, again, the Act does not expressly exclude from copyright protection annotations created either by the State or at the State’s request. Fourth, the Act provides that an author may hold a copyright in “material contributed” in a derivative work, “as distinguished from the preexisting material employed in the work.” § 103(b); see also *Feist Publications, Inc. v. Rural Telephone Service Co.*, 499 U.S. 340, 359 (1991). These aspects of the statutory text, taken together, further support the conclusion that the OCGA annotations are copyrightable.

For all these reasons, I would conclude that, as with the privately created annotations in *Callaghan*, Georgia’s statutory annotations at issue in this case are copyrightable.

III

The majority reads this Court’s precedents differently. In its view, the Court in *Banks* held that judges are not “authors” within the scope of the Copyright Act for “whatever

THOMAS, J., dissenting

work they perform in their capacity as judges,” 128 U. S., at 253, so the same must be true for legislators, see *ante*, at 266. Accordingly, works created by legislators in their legislative capacity are not “original works of authorship,” § 102, and therefore cannot be copyrighted. This argument is flawed in multiple respects.

A

Most notably, the majority’s textual analysis hinges on accepting that its construction of “authorship,” *i. e.*, all works produced in a judge’s or legislator’s official capacity, was so well established by our 19th-century precedents that Congress incorporated it into the multiple revisions of the Copyright Act. See *ante*, at 270–271. Such confidence is questionable, to say the least.

The majority’s understanding of the government edicts doctrine seems to have been lost on dozens of States and Territories, as well as the lower courts in this case. As already stated, the 25 jurisdictions with official annotated codes apparently did not view this Court’s precedents as establishing the “official duties” definition of authorship. See Brief for State of Arkansas et al. as *Amici Curiae*.⁴ And if

⁴ According to one study published in 2000, approximately half of States owned copyright in official state statutory compilations, court reports, or administrative regulations. Dmitrieva, State Ownership of Copyrights in Primary Law Materials, 23 Hastings Com. & Entertainment L. J. 81, 83, 97–105 (2000). The majority attempts to undermine this study by emphasizing that some of these States owned copyright in primary law materials. *Ante*, at 271, n. 3. This misunderstands the point. I do not claim that this evidence demonstrates that the States necessarily interpreted the government edicts doctrine correctly. I merely point out that these divergent practices seriously undercut the majority’s claim that its interpretation of “authorship” was well settled and universally understood. On this score, the majority has no answer but to insinuate that the lawmakers of over half the Nation’s jurisdictions disregarded federal law and the Constitution to pursue their own agendas in the face of supposedly clear precedent.

THOMAS, J., dissenting

“our precedents answer the question” so clearly, *ante*, at 271, one wonders why the Eleventh Circuit reached its conclusion in such a roundabout fashion. Rather than following the majority’s “straightforward” path, *ante*, at 263, the Eleventh Circuit looked to the “zone of indeterminacy at the frontier between edicts that carry the force of law and those that do not” to determine whether the annotations were “sufficiently law-like” to be “constructively authored by the People.” *Code Revision Comm’n v. Public.Resource.Org, Inc.*, 906 F. 3d 1229, 1233, 1242, 1243 (2018). The District Court likewise does not appear to have viewed the question as well settled. In a cursory analysis, it determined that the annotations were copyrightable based on *Callaghan. Code Revision Comm’n v. Public.Resource.Org, Inc.*, 244 F. Supp. 3d 1350, 1356 (ND Ga. 2017). It is risible to presume that Congress had knowledge of and incorporated a “settled” meaning that eluded a multitude of States and Territories, as well as at least four Article III judges. *Ante*, at 270–271. Cf. *Rimini Street, Inc. v. Oracle USA, Inc.*, 586 U. S. 334, 344–345 (2019).

This presumption of congressional knowledge also provides the basis for the majority’s conclusion that the annotations are not “original works of authorship.” See *ante*, at 269–270 (discussing § 101). Stripped of the fiction that this Court’s 19th-century precedents clearly demonstrated that “authorship” encompassed all works performed as part of a legislator’s duties, the majority’s textual argument fails.

The majority does not confront this criticism head on. Instead, it simply repeats, without any further elaboration, its unsupported conclusion that “[t]he Court long ago interpreted the word ‘author’ to exclude officials empowered to speak with the force of law, and Congress has carried that meaning forward in multiple iterations of the Copyright Act.” *Ante*, at 274. This wave of the “magic wand of *ipse dixit*” does nothing to strengthen the majority’s argument,

THOMAS, J., dissenting

and in fact only serves to underscore its weakness. *United States v. Yermian*, 468 U. S. 63, 77 (1984) (Rehnquist, J., dissenting).⁵

B

In addition to its textual deficiencies, the majority's understanding of this Court's precedents fails to account for the critical differences between the role that judicial opinions play in expounding upon the law compared to that of statutes. The majority finds it meaningful, for instance, that *Banks* prohibited dissents and concurrences from being copyrighted, even though they carry no legal force. *Ante*, at 273. At an elementary level, it is true that the judgment is the only part of a judicial decision that has legal effect. But it blinks reality to ignore that every word of a judicial opinion—whether it is a majority, a concurrence, or a dissent—expounds upon the law in ways that do not map neatly on to the legislative function. Setting aside summary decisions, the reader of a judicial opinion will always gain critical insight into the reasoning underlying a judicial holding by reading all opinions in their entirety. Understanding the reasoning that animates the rule in turn provides pivotal insight into how the law will likely be applied in future judicial opinions.⁶ Thus, deprived of access to judicial opinions, indi-

⁵The majority's approach is also hard to reconcile with the recognition in *Wheaton v. Peters*, 8 Pet. 591 (1834), that annotations prepared by the Reporter of Decisions could be copyrighted. Wheaton was paid a salary of \$1,000, and it is difficult to say whether this salary funded his work on the opinions or his work on the annotations. See *id.*, at 614, 617 (argument).

⁶For instance, this Court has not overruled *Lemon v. Kurtzman*, 403 U. S. 602 (1971), which pronounced a test for evaluating Establishment Clause claims. But a reader would do well to carefully scrutinize the various opinions in *American Legion v. American Humanist Assn.*, 588 U. S. 29 (2019), to understand the markedly different way that this precedent functions in our current jurisprudence compared to when it was first decided. Moreover, sometimes a separate writing takes on canonical status, like Justice Jackson's concurrence regarding the executive power in *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S. 579, 634–638 (1952)

THOMAS, J., dissenting

viduals cannot access the primary, and therefore best, source of information for the meaning of the law.⁷ And as true as that is today, access to these opinions was even more essential in the 19th century before the proliferation of federal

(opinion concurring in judgment and opinion of the Court); see also *Katz v. United States*, 389 U. S. 347, 360–361 (1967) (Harlan, J., concurring) (reasonable expectation of privacy Fourth Amendment test). Still other times, the reasoning in an opinion for less than a majority of the Court provides the explicit basis for a later majority’s holding. See, e.g., *McKinney v. Arizona*, 589 U. S. 139, 145 (2020) (discussing *Ring v. Arizona*, 536 U. S. 584, 612 (2002) (Scalia, J., concurring)); *Estelle v. Gamble*, 429 U. S. 97, 102 (1976) (incorporating into the majority the Eighth Amendment “‘evolving standards of decency’” test first announced in *Trop v. Dulles*, 356 U. S. 86, 101 (1958) (plurality opinion)). Even “‘comments in [a] dissenting opinion,’” *ante*, at 273, sometimes reemerge as the foundational reasoning in a majority opinion. See, e.g., *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 237 (2019) (discussing *Nevada v. Hall*, 440 U. S. 410, 433–439 (1979) (Rehnquist, J., dissenting)); *Lawrence v. Texas*, 539 U. S. 558, 578 (2003) (“JUSTICE STEVENS’ [dissenting] analysis, in our view, should have been controlling in *Bowers* [*v. Hardwick*, 478 U. S. 186 (1986),] and should control here”). These examples, and myriad more, demonstrate that the majority treats the role of separate judicial opinions in an overly simplistic fashion.

⁷ *Banks* also stated that judicially prepared syllabi and headnotes cannot be copyrighted. 128 U. S., at 253. The majority cites these materials as further evidence of its broad rule, because the majority finds it beyond cavil that “these supplementary materials do not have the force of law.” *Ante*, at 273. The majority feels it appropriate to assume—without any historical inquiry—that the words “syllabus” and “headnote” carried the same meaning, or served the same function, in 1888 as they do now. Without briefing on this issue, I am not willing to make that leap. See *Hixson v. Burson*, 54 Ohio St. 470, 485, 43 N. E. 1000, 1003 (1896) (“reluctantly overrull[ing] the second syllabus” of a previous decision); *Holliday v. Brown*, 34 Neb. 232, 234, 51 N. W. 839, 840 (1892) (“It is an unwritten rule of this court that members thereof are bound only by the points as stated in the syllabus of each case”); see also *Frazier v. State*, 15 Ga. App. 365, 365–367, 83 S. E. 273, 273–274 (1914) (clarifying the meaning of a court-written headnote and emphasizing that to understand an opinion’s meaning, the headnote and opinion must be read together); *United States v. Detroit Timber & Lumber Co.*, 200 U. S. 321, 337 (1906) (acknowledging that some state statutes rendered headnotes the work of the court carrying legal force).

THOMAS, J., dissenting

and state regulatory law fundamentally altered the role that common-law judging played in expounding upon the law. See also *post*, at 293 (GINSBURG, J., dissenting).

These differences provide crucial context for *Banks*' reasoning. Specifically, to ensure that judicial "exposition and interpretation of the law" remains "free for publication to all," the word "author" must be read to encompass all judicial duties. *Banks*, 128 U. S., at 253. But these differences also demonstrate that the same rule does not *a fortiori* apply to all legislative duties.⁸

C

In addition to being flawed as a textual and precedential matter, the majority's rule will prove difficult to administer. According to one group of *amici*, nearly all jurisdictions with annotated codes use private contractors that "almost invariably prepare [annotations] under the supervision of legislative-branch or judicial-branch officials, including state legislators or state-court judges." Brief for State of Arkansas et al. as *Amici Curiae* 16–17. Under the majority's view, any one of these commissions or counsels could potentially be reclassified as an "adjunct to the legislature." *Ante*, at 269. But the majority's test for ascertaining the true nature of these commissions raises far more questions than it answers.

⁸ Although legislative history is not at issue in this case, the majority also contends that its rule is necessary to fend off the possibility that "[a] State could monetize its entire suite of legislative history." *Ante*, at 275. Putting aside the jurisprudential debate over the use of such materials in interpreting federal statutes, many States can, and have, specifically authorized courts to consider legislative history when construing statutes. See, e. g., Colo. Rev. Stat. § 2–4–203(1)(c) (2019); Iowa Code § 4.6(3) (2019); Minn. Stat. § 645.16(7) (2018); N. M. Stat. Ann. § 12–2A–20(C)(2) (2019); N. D. Cent. Code Ann. § 1–02–39(3) (2019); Ohio Rev. Code Ann. § 1.49(C) (Lexis Supp. 2019); 1 Pa. Cons. Stat. § 1921(c)(7) (2016). Given the direct role that legislative history plays in the construction of statutes in these States, it is hardly clear that such States could subject their legislative histories to copyright.

THOMAS, J., dissenting

The majority lists a number of factors—including the Commission’s membership and funding, how the annotations become part of the OCGA, and descriptions of the Commission from court cases—to support its conclusion that the Commission is really part of the legislature. See *ante*, at 267–268. But it does not specify whether these factors are exhaustive or illustrative and, if the latter, what other factors may be important. The majority also does not specify whether some factors weigh more heavily than others when deciding whether to deem an oversight body a legislative adjunct.

And even when the majority does list concrete factors, pivotal guidance remains lacking. For example, the majority finds it meaningful that 9 out of the Commission’s 15 members are legislators. *Ante*, at 267; see OCGA §28–9–2 (noting that the other members of the Commission include the State’s Lieutenant Governor, a judge, a district attorney, and three other state bar members). But how many legislative members are needed for a commission to become a legislative adjunct? The majority provides no answers to any of these questions.

* * *

The majority’s rule will leave in the lurch the many States, private parties, and legal researchers who relied on the previously bright-line rule. Perhaps, to the detriment of all, many States will stop producing annotated codes altogether. Were that to occur, the majority’s fear of an “economy-class” version of the law will truly become a reality. See *ante*, at 274. As Georgia explains, its contract enables the OCGA to be sold at a fraction of the cost of competing annotated codes. For example, Georgia asserts that Lexis sold the OCGA for \$404 in 2016, while West Publishing’s competing annotated code sold for \$2,570. Should state annotated codes disappear, those without the means to pay the competitor’s significantly higher price tag will have a valuable research tool taken away from them. Meanwhile, this Court, which is privileged to have access to numerous research resources,

GINSBURG, J., dissenting

will scarcely notice. These negative practical ramifications are unfortunate enough when they reflect the deliberative legislative choices that we as judges are bound to respect. They are all the more regrettable when they are the result of our own meddling. Fortunately, as the majority and I agree, “‘critics of [today’s] ruling can take their objections across the street, [where] Congress can correct any mistake it sees.’” *Ante*, at 270–271 (quoting *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 456 (2015)).

We have “stressed . . . that it is generally for Congress, not the courts, to decide how best to pursue the Copyright Clause’s objectives,” *Eldred v. Ashcroft*, 537 U. S. 186, 212 (2003), because “it is Congress that has been assigned the task of defining the scope of the limited monopoly that should be granted to authors,” *Sony Corp. of America v. Universal City Studios, Inc.*, 464 U. S. 417, 429 (1984). Because the majority has strayed from its proper role, I respectfully dissent.

JUSTICE GINSBURG, with whom JUSTICE BREYER joins, dissenting.

Beyond doubt, state laws are not copyrightable. Nor are other materials created by state legislators in the course of performing their lawmaking responsibilities, *e. g.*, legislative committee reports, floor statements, unenacted bills. *Ante*, at 266. Not all that legislators do, however, is ineligible for copyright protection; the government edicts doctrine shields only “works that are (1) created by judges and legislators (2) *in the course of their judicial and legislative duties*.” *Ibid.* (emphasis added). The core question this case presents, as I see it: Are the annotations in the Official Code of Georgia Annotated (OCGA) done in a legislative capacity? The answer, I am persuaded, should be no.

To explain why, I proceed from common ground. All agree that headnotes and syllabi for judicial opinions—both a kind of annotation—are copyrightable when created by a

GINSBURG, J., dissenting

reporter of decisions, *Callaghan v. Myers*, 128 U. S. 617, 645–650 (1888), but are not copyrightable when created by judges, *Banks v. Manchester*, 128 U. S. 244, 253 (1888). That is so because “[t]he whole work done by . . . judges,” *ibid.*, including dissenting and concurring opinions, ranks as work performed in their judicial capacity. Judges do not outsource their writings to “arm[s]” or “adjunct[s],” cf. *ante*, at 259, 269, to be composed in their stead. Accordingly, the judicial opinion-drafting process in its entirety—including the drafting of headnotes and syllabi, in jurisdictions where that is done by judges—falls outside the reach of copyright protection.

One might ask: If a judge’s annotations are not copyrightable, why are those created by legislators? The answer lies in the difference between the role of a judge and the role of a legislator. “[T]o the judiciary” we assign “the duty of interpreting and applying” the law, *Massachusetts v. Mellon*, 262 U. S. 447, 488 (1923), and sometimes making the applicable law, see Friendly, In Praise of *Erie*—and of the New Federal Common Law, 39 N. Y. U. L. Rev. 383 (1964). See also *Marbury v. Madison*, 1 Cranch 137, 177 (1803) (“It is emphatically the province and duty of the judicial department to say what the law is.”). In contrast, the role of the legislature encompasses the process of “making laws”—not construing statutes after their enactment. *Mellon*, 262 U. S., at 488; see *Patchak v. Zinke*, 583 U. S. 244, 250 (2018) (plurality opinion) (“[T]he legislative power is the power to make law.”). The OCGA annotations, in my appraisal, do not rank as part of the Georgia Legislature’s *lawmaking process* for three reasons.

First, the annotations are not created contemporaneously with the statutes to which they pertain; instead, the annotations comment on statutes already enacted. See, e. g., App. 268–269 (text of enacted laws are transmitted to the publisher for the addition of commentary); *id.*, at 403–404 (publisher adds new case notes on a rolling basis as courts con-

GINSBURG, J., dissenting

strue existing statutes).¹ In short, annotating begins only after lawmaking ends. This sets the OCGA annotations apart from uncopyrightable legislative materials like committee reports, generated before a law's enactment, and tied tightly to the task of law-formulation.

Second, the OCGA annotations are descriptive rather than prescriptive. Instead of stating the legislature's perception of what a law conveys, the annotations summarize writings in which others express *their* views on a given statute. For example, the OCGA contains "case annotations" for "[a]ll decisions of the Supreme Court of Georgia and the Court of Appeals of Georgia and all decisions of the federal courts in cases which arose in Georgia construing any portion of the general statutory law of the state." *Id.*, at 403. Per the Code Revision Commission's instructions, each annotation should "accurately reflect the facts, holding, and statutory construction" adopted by the court. *Id.*, at 404. The annotations are neutrally cast; they do not opine on whether the summarized case was correctly decided. See, e.g., OCGA § 17-7-50 (2013) (case annotation summarizing facts and holdings of nine cases construing right to grand jury hearing). This characteristic of the annotations distinguishes them from preenactment legislative materials that touch or concern the correct interpretation of the legislature's work.

Third, and of prime importance, the OCGA annotations are "given for the purpose of convenient reference" by the public, § 1-1-7 (2019); they aim to inform the citizenry at large, they do not address, particularly, those seated in legislative chambers.² Annotations are thus unlike, for example,

¹For example, OCGA § 11-2A-213 was enacted, in its current form, in 1993. See 1993 Ga. Laws p. 633. The case notes contained in the OCGA summarize judicial decisions construing the statute years later. See § 11-2A-213 (2002) (citing *Griffith v. Medical Rental Supply of Albany, Ga., Inc.*, 244 Ga. App. 120, 534 S. E. 2d 859 (2000); *Bailey v. Tucker Equip. Sales, Inc.*, 236 Ga. App. 289, 510 S. E. 2d 904 (1999)).

²Suppose a committee of Georgia's legislature, to inform the public, instructs a staffer to write a guide titled "The Workways of the Georgia Legislature." The final text describing how the legislature operates is

GINSBURG, J., dissenting

surveys, work commissioned by a legislature to aid in determining whether existing law should be amended.

The requirement that the statutory portions of the OCGA “shall be merged with annotations,” § 1–1–1, does not render the annotations anything other than explanatory, referential, or commentarial material. See *Harrison Co. v. Code Revision Comm’n*, 244 Ga. 325, 331, 260 S. E. 2d 30, 35 (1979) (observation by the Supreme Court of Georgia that “inclusion of annotations in [the] ‘official Code’” does not “give the annotations any official weight”).³ Annotations aid the legal researcher, and that aid is enhanced when annotations are printed beneath or alongside the relevant statutory text. But the placement of annotations in the OCGA does not alter their auxiliary, nonlegislative character.

* * *

Because summarizing judicial decisions and commentary bearing on enacted statutes, in contrast to, for example, drafting a committee report to accompany proposed legislation, is not done in a legislator’s law-shaping capacity, I would hold the OCGA annotations copyrightable and therefore reverse the judgment of the Court of Appeals for the Eleventh Circuit.

circulated to members of the legislature and approved by a majority. Contrary to the Court’s decision, I take it that such a work, which entails no lawmaking, would be copyrightable.

³That the Georgia Supreme Court described the Commission’s work as “within the sphere of legislative authority” for state separation-of-powers purposes, *Harrison Co. v. Code Revision Comm’n*, 244 Ga. 325, 330, 260 S. E. 2d 30, 34 (1979), does not resolve the federal Copyright Act question before us. Cf. *Yates v. United States*, 574 U. S. 528, 537 (2015) (plurality opinion) (“In law as in life, . . . the same words, placed in different contexts, sometimes mean different things.”); Cook, “Substance” and “Procedure” in the Conflict of Laws, 42 Yale L. J. 333, 337 (1933) (“The tendency to assume that a word which appears in two or more legal rules, and so in connection with more than one purpose, has and should have precisely the same scope in all of them, runs all through legal discussions. It has all the tenacity of original sin and must constantly be guarded against.”).

Syllabus

MAINE COMMUNITY HEALTH OPTIONS *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FEDERAL CIRCUIT

No. 18–1023. Argued December 10, 2019—Decided April 27, 2020*

The Patient Protection and Affordable Care Act established online exchanges where insurers could sell their healthcare plans. The now-expired “Risk Corridors” program aimed to limit the plans’ profits and losses during the exchanges’ first three years (2014 through 2016). See § 1342, 124 Stat. 211. Section 1342 set out a formula for computing a plan’s gains or losses at the end of each year, providing that eligible profitable plans “shall pay” the Secretary of the Department of Health and Human Services (HHS), while the Secretary “shall pay” eligible unprofitable plans. The Act neither appropriated funds for these yearly payments nor limited the amounts that the Government might pay. Nor was the program required to be budget neutral. Each year, the Government owed more money to unprofitable insurers than profitable insurers owed to the Government, resulting in a total deficit of more than \$12 billion. And at the end of each year, the appropriations bills for the Centers for Medicare and Medicaid Services (CMS) included a rider preventing CMS from using the funds for Risk Corridors payments. Petitioners—four health-insurance companies that claim losses under the program—sued the Federal Government for damages in the Court of Federal Claims. Invoking the Tucker Act, they alleged that § 1342 obligated the Government to pay the full amount of their losses as calculated by the statutory formula and sought a money judgment for the unpaid sums owed. Only one petitioner prevailed in the trial courts, and the Federal Circuit ruled for the Government in each appeal, holding that § 1342 had initially created a Government obligation to pay the full amounts, but that the subsequent appropriations riders impliedly “repealed or suspended” that obligation.

*Together with No. 18–1028, *Moda Health Plan, Inc. v. United States* (see this Court’s Rule 12.4) and *Blue Cross and Blue Shield of North Carolina v. United States* (see this Court’s Rule 12.4); and No. 18–1038, *Land of Lincoln Mutual Health Insurance Co. v. United States*, also on certiorari to the same court.

Syllabus

Held:

1. The Risk Corridors statute created a Government obligation to pay insurers the full amount set out in § 1342's formula. Pp. 307–314.

(a) The Government may incur an obligation directly through statutory language, without also providing details about how the obligation must be satisfied. See *United States v. Langston*, 118 U. S. 389. Pp. 307–310.

(b) Section 1342 imposed a legal duty of the United States that could mature into a legal liability through the insurers' participation in the exchanges. This conclusion flows from the express terms and context of § 1342, which imposed an obligation by using the mandatory term "shall." The section's mandatory nature is underscored by the adjacent provisions, which differentiate between when the HHS Secretary "shall" take certain actions and when she "may" exercise discretion. See §§ 1341(b)(2), 1343(b). Section 1342 neither requires the Risk Corridors program to be budget neutral nor suggests that the Secretary's payments to unprofitable plans pivoted on profitable plans' payments to the Secretary or that a partial payment would satisfy the Government's whole obligation. It thus must be given its plain meaning: The Government "shall pay" the sum prescribed by § 1342. Pp. 310–311.

(c) Contrary to the Government's contention, neither the Appropriations Clause nor the Anti-Deficiency Act addresses whether Congress itself can create or incur an obligation directly by statute. Nor does § 1342's obligation-creating language turn on whether Congress expressly provided budget authority before appropriating funds. The Government's arguments also conflict with well-settled principles of statutory interpretation. That § 1342 contains no language limiting the obligation to the availability of appropriations, while Congress expressly used such limiting language in other Affordable Care Act provisions, indicates that Congress intended a different meaning in § 1342. Pp. 311–314.

2. Congress did not impliedly repeal the obligation through its appropriations riders. Pp. 314–321.

(a) Because "repeals by implication are not favored," *Morton v. Mancari*, 417 U. S. 535, 549, this Court will regard each of two statutes effective unless Congress' intention to repeal is "clear and manifest," or the laws are "irreconcilable," *id.*, at 550–551. In the appropriations context, this requires the Government to show "something more than the mere omission to appropriate a sufficient sum." *United States v. Vulte*, 233 U. S. 509, 515. As *Langston* and *Vulte* confirm, the appropriations riders here did not manifestly repeal or discharge the Government's uncapped obligation, see *Langston*, 118 U. S., at 394, and do not

Syllabus

indicate “any other purpose than the disbursement of a sum of money for the particular fiscal years,” *Vulte*, 233 U.S., at 514. Nor is there any indication that HHS and CMS thought that the riders clearly expressed an intent to repeal. Pp. 315–317.

(b) Appropriations measures have been found irreconcilable with statutory obligations to pay, but the riders here did not use the kind of “shall not take effect” language decisive in *United States v. Will*, 449 U.S. 200, 222–223, or purport to “suspens[us]” § 1342 prospectively or to foreclose funds from “any other Act” “notwithstanding” § 1342’s money-mandating text, *United States v. Dickerson*, 310 U.S. 554, 556–557. They also did not reference § 1342’s payment formula, let alone “irreconcilabl[y]” change it, *United States v. Mitchell*, 109 U.S. 146, 150, or provide that payments from profitable plans would be “‘in full compensation’” of the Government’s obligation to unprofitable plans, *United States v. Fisher*, 109 U.S. 143, 150. Pp. 317–319.

(c) The legislative history cited by the Federal Circuit is also unpersuasive. Pp. 320–321.

3. Petitioners properly relied on the Tucker Act to sue for damages in the Court of Federal Claims. Pp. 321–329.

(a) The United States has waived its immunity for certain damages suits in the Court of Federal Claims through the Tucker Act. Because that Act does not create “substantive rights,” *United States v. Navajo Nation*, 556 U.S. 287, 290, a plaintiff must premise her damages action on “other sources of law,” like “statutes or contracts,” *ibid.*, provided those statutes “‘can fairly be interpreted as mandating compensation by the Federal Government for the damage sustained,’” *United States v. White Mountain Apache Tribe*, 537 U.S. 465, 472. The Act does, however, yield when the obligation-creating statute provides its own detailed remedies or when the Administrative Procedure Act provides an avenue for relief. Pp. 322–324.

(b) Petitioners clear each hurdle: The Risk Corridors statute is fairly interpreted as mandating compensation for damages, and neither exception to the Tucker Act applies. Section 1342’s mandatory “‘shall pay’ language” falls comfortably within the class of statutes that permit recovery of money damages in the Court of Federal Claims. This finding is bolstered by § 1342’s focus on compensating insurers for past conduct. And there is no separate remedial scheme supplanting the Court of Federal Claims’ power to adjudicate petitioners’ claims. See *United States v. Bormes*, 568 U.S. 6, 12. Nor does the Administrative Procedure Act bar petitioners’ Tucker Act suit. In contrast to *Bowen v. Massachusetts*, 487 U.S. 879, a Medicaid case where the State sued the HHS Secretary under the Administrative Procedure Act in district court, petitioners here seek not prospective, nonmonetary relief to clarify future obligations but specific sums already calculated, past due, and

Syllabus

designed to compensate for completed labors. The Risk Corridors statute and Tucker Act allow them that remedy. And because the Risk Corridors program expired years ago, this litigation presents no special concern, as *Bowen* did, about managing a complex ongoing relationship or tracking ever-changing accounting sheets. Pp. 324–327.

No. 18–1023 and No. 18–1028 (second judgment), 729 Fed. Appx. 939; No. 18–1028 (first judgment), 892 F. 3d 1311; No. 18–1038, 892 F. 3d 1184, reversed and remanded.

SOTOMAYOR, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, BREYER, KAGAN, and KAVANAUGH, JJ., joined, and in which THOMAS and GORSUCH, JJ., joined as to all but Part III–C. ALITO, J., filed a dissenting opinion, *post*, p. 329.

Paul D. Clement argued the cause for petitioners in all cases. With him on the briefs in No. 18–1028 were *Erin E. Murphy*, *C. Harker Rhodes IV*, *Kasdin M. Mitchell*, and *Caroline Brown*. On the briefs in No. 18–1023 were *Stephen J. McBrady*, *Clifton S. Elgarten*, *Daniel W. Wolff*, and *A. Xavier Baker*. On the briefs in No. 18–1038 were *Jonathan S. Massey*, *Marc Goldman*, *Daniel P. Albers*, and *Mark E. Rust*.

Deputy Solicitor General Kneedler argued the cause for the United States. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Assistant Attorney General Mooppan*, *Jonathan C. Bond*, *Mark B. Stern*, and *Alisa B. Klein*.[†]

[†]Briefs of *amici curiae* urging reversal in all cases were filed for 24 States et al. by *Ellen F. Rosenblum*, Attorney General of Oregon, *Benjamin Gutman*, Solicitor General, and *Peenesh Shah*, Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Kevin G. Clarkson* of Alaska, *Xavier Becerra* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Kwame Raoul* of Illinois, *Andy Beshear* of Kentucky, *Aaron M. Frey* of Maine, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Gurbir S. Grewal* of New Jersey, *Hector Balderas* of New Mexico, *Letitia James* of New York, *Josh Stein* of North Carolina, *Josh Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Thomas J. Donovan, Jr.*, of Vermont, *Mark R. Herring* of Virginia, *Robert W. Ferguson* of Washing-

JUSTICE SOTOMAYOR delivered the opinion of the Court.*

The Patient Protection and Affordable Care Act expanded healthcare coverage to many who did not have or could not afford it. The Affordable Care Act did this by, among other things, providing tax credits to help people buy insurance and establishing online marketplaces where insurers could sell plans. To encourage insurers to enter those marketplaces, the Act created several programs to defray the carriers’ costs and cabin their risks.

Among these initiatives was the “Risk Corridors” program, a temporary framework meant to compensate insurers for unexpectedly unprofitable plans during the marketplaces’ first three years. The since-expired Risk Corridors statute, § 1342, set a formula for calculating payments under the program: If an insurance plan loses a certain amount of money, the Federal Government “shall pay” the plan; if the plan makes a certain amount of money, the plan “shall pay” the Government. See § 1342, 124 Stat. 211–212 (codified at 42 U. S. C. § 18062). Some plans made money and paid the Government. Many suffered losses and sought reimbursement. The Government, however, did not pay.

ton, and *Bridget Hill* of Wyoming; for America’s Health Insurance Plans by *Pratik A. Shah*, *Hyland Hunt*, and *Ruthanne M. Deutsch*; for the Association for Community Affiliated Plans by *William L. Roberts*, *Jonathan W. Dettmann*, and *Nicholas J. Nelson*; for the Blue Cross Blue Shield Association by *K. Lee Blalack II*, *Jennifer Sokoler*, and *Shane A. Hunt*; for Economists by *Stephen A. Swedlow* and *Andrew H. Schapiro*; for Highmark Inc. et al. by *Colin E. Wrabley* and *Lawrence S. Sher*; for the National Association of Insurance Commissioners by *Derek T. Teeter*, *Douglas J. Schmidt*, *Michael T. Raupp*, and *Gail Sciacchetano*; for Wisconsin Physicians Service Insurance Corp. et al. by *Frank A. Gumina*; and in No. 18–1028 for the Chamber of Commerce of the United States of America by *Paul J. Zidlicky*, *Jacqueline G. Cooper*, and *C. Frederick Beckner III*.

Eric R. Bolinder and *R. James Valvo III* filed a brief for Americans for Prosperity as *amicus curiae* urging affirmance in all cases.

*JUSTICE THOMAS and JUSTICE GORSUCH join all but Part III–C of this opinion.

Opinion of the Court

These cases are about whether petitioners—insurers who claim losses under the Risk Corridors program—have a right to payment under §1342 and a damages remedy for the unpaid amounts. We hold that they do. We conclude that §1342 of the Affordable Care Act established a money-mandating obligation, that Congress did not repeal this obligation, and that petitioners may sue the Government for damages in the Court of Federal Claims.

I

A

In 2010, Congress passed the Patient Protection and Affordable Care Act, 124 Stat. 119, seeking to improve national health-insurance markets and extend coverage to millions of people without adequate (or any) health insurance. To that end, the Affordable Care Act called for the creation of virtual health-insurance markets, or “Health Benefit Exchanges,” in each State. 42 U. S. C. §18031(b)(1). Individuals may buy health-insurance plans directly on an exchange and, depending on their household income, receive tax credits for doing so. 26 U. S. C. §36B; 42 U. S. C. §§18081, 18082. Once an insurer puts a plan on an exchange, it must “accept every employer and individual in the State that applies for such coverage,” 42 U. S. C. §300gg–1(a), and may not tether premiums to a particular applicant’s health, §300gg(a). In other words, the Act “ensure[s] that anyone can buy insurance.” *King v. Burwell*, 576 U. S. 473, 493 (2015).

Insurance carriers had many reasons to participate in these new exchanges. Through the Affordable Care Act, they gained access to millions of new customers with tax credits worth “billions of dollars in spending each year.” *Id.*, at 485. But the exchanges posed some business risks, too—including a lack of “reliable data to estimate the cost of providing care for the expanded pool of individuals seeking coverage.” 892 F. 3d 1311, 1314 (CA Fed. 2018) (case below in No. 18–1028).

This uncertainty could have given carriers pause and affected the rates they set. So the Affordable Care Act created several risk-mitigation programs. At issue here is the Risk Corridors program.¹

B

The Risk Corridors program aimed to limit participating plans' profits and losses for the exchanges' first three years (2014, 2015, and 2016). See § 1342, 124 Stat. 211, 42 U. S. C. § 18062. It did so through a formula that computed a plan's gains or losses at the end of each year. Plans with profits above a certain threshold would pay the Government, while plans with losses below that threshold would receive payments from the Government. § 1342(b), 124 Stat. 211–212. Specifically, § 1342 stated that the eligible profitable plans “shall pay” the Secretary of the Department of Health and Human Services (HHS), while the Secretary “shall pay” the eligible unprofitable plans. *Ibid.*²

When it enacted the Affordable Care Act in 2010, Congress did not simultaneously appropriate funds for the yearly payments the Secretary could potentially owe under the Risk Corridors program. Neither did Congress limit the

¹The others were the “Reinsurance” and “Risk Adjustment” programs. The former ran from 2014 to 2016 and required insurers to pay premiums into a pool that compensated carriers covering “high risk individuals.” § 1341, 124 Stat. 208, 42 U. S. C. § 18061. The latter is still in effect and annually transfers funds from insurance plans with relatively low-risk enrollees to plans with higher risk enrollees. See § 1343, 124 Stat. 212, 42 U. S. C. § 18063.

²If a health-insurance plan made (or lost) up to 3 percentage points more than expected in a plan year, the plan would keep the gains (or losses). If the plan made (or lost) between 3 and 8 percentage points more than predicted, it would give up half of the earnings (or would be compensated for half of the shortfalls) exceeding the 3 percentage-point threshold. If the gains (or losses) exceeded predictions by 8 percentage points, the insurers would pay (or receive) 80 percent of the gains (or losses) exceeding the 8 percentage-point mark. See § 1342(b), 124 Stat. 211–212, 42 U. S. C. § 18062(b).

Opinion of the Court

amounts that the Government might pay under § 1342. Nor did the Congressional Budget Office (CBO) “score”—that is, calculate the budgetary impact of—the Risk Corridors program.

In later years, the CBO noted that the Risk Corridors statute did not require the program to be budget neutral. The CBO reported that, “[i]n contrast” to the Act’s other risk-mitigation programs, “risk corridor collections (which will be recorded as revenues) will not necessarily equal risk corridor payments, so that program can have net effects on the budget deficit.” CBO, *The Budget and Economic Outlook: 2014 to 2024*, p. 59 (2014). The CBO thus recognized that “[i]f insurers’ costs exceed their expectations, on average, the risk corridor program will impose costs on the federal budget.” *Id.*, at 110.

Like the CBO, the federal agencies charged with implementing the program agreed that § 1342 did not require budget neutrality. Nine months before the program started, HHS acknowledged that the Risk Corridors program was “not statutorily required to be budget neutral.” 78 Fed. Reg. 15473 (2013). HHS assured, however, that “[r]egardless of the balance of payments and receipts, HHS will remit payments as required under section 1342 of the Affordable Care Act.” *Ibid.*

Similar guidance came from the Centers for Medicare and Medicaid Services (CMS), the agency tasked with helping the HHS Secretary collect and remit program payments. CMS confirmed that a lack of payments from profitable plans would not relieve the Government from making its payments to the unprofitable ones. See 79 Fed. Reg. 30260 (2014). Citing “concerns that risk corridors collections may not be sufficient to fully fund risk corridors payments” to the unprofitable plans, CMS declared that “[i]n the unlikely event of a shortfall . . . HHS recognizes that the Affordable Care Act requires the Secretary to make full payments to issuers.” *Ibid.*

C

The program's first year, 2014, tallied a deficit of about \$2.5 billion. Profitable plans owed the Government \$362 million, while the Government owed unprofitable plans \$2.87 billion. See CMS, Risk Corridors Payment Proration Rate for 2014 (2015).

At the end of the first year, Congress enacted a bill appropriating a lump sum for CMS' Program Management. See Pub. L. 113–235, Div. G, Tit. II, 128 Stat. 2130–2131 (providing for the fiscal year ending September 30, 2015). The bill included a rider restricting the appropriation's effect on Risk Corridors payments out to issuers:

“None of the funds made available by this Act . . . or transferred from other accounts funded by this Act to the ‘Centers for Medicare and Medicaid Services—Program Management’ account, may be used for payments under section 1342(b)(1) of Public Law 111–148 (relating to risk corridors).” § 227, *id.*, at 2491.

The program's second year resembled its first. In February 2015, HHS repeated its belief that “risk corridors collections w[ould] be sufficient to pay for all” of the Government's “risk corridors payments.” 80 Fed. Reg. 10779 (2015). The agency again “recognize[d] that the Affordable Care Act requires the Secretary to make full payments to issuers.” *Ibid.* “In the unlikely event that risk corridors collections” were “insufficient to make risk corridors payments,” HHS reassured, the Government would “use other sources of funding for the risk corridors payments, subject to the availability of appropriations.” *Ibid.*

The 2015 program year also ran a deficit, this time worth about \$5.5 billion. See CMS, Risk Corridors Payment and Charge Amounts for the 2015 Benefit Year (2016). Facing a second shortfall, CMS continued to “recogniz[e] that the Affordable Care Act requires the Secretary to make full pay-